

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
MARK FAM,

SUMMONS

Plaintiff,

Venue is based on CPLR § 504(3)

-against-

THE CITY OF NEW YORK,

Plaintiff demands a jury trial
COUNTY OF NEW YORK

Defendant.
-----X

To the above-named Defendant:

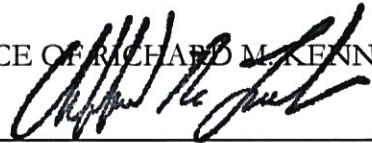
YOU ARE HEREBY SUMMONED to answer the Verified Complaint in this action by serving a Verified Answer upon the undersigned within twenty (20) days after the service of this Summons, exclusive of the day of service, or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York.

PLEASE TAKE FURTHER NOTICE that in case of Defendant's failure to serve a Verified Answer, judgment will be taken against you, jointly and severally, by default for the relief demanded in the Verified Complaint.

Dated: New York, New York
November 25, 2014

Yours, etc.,

LAW OFFICE OF RICHARD M. KENNY

By: 

CLIFFORD R. TUCKER

Attorneys for Plaintiff

Office and P.O. Address

875 Avenue of the Americas, Suite 805

New York, New York 10001

(212) 421-0300

To:

The City of New York
c/o The New York City Law Department
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
MARK FAM,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,

Plaintiff demands a jury trial

Defendant.

-----X

Plaintiff, MARK FAM, by his attorneys, THE LAW OFFICE OF RICHARD M. KENNY,
as and for his Verified Complaint, respectfully alleges the following upon information and belief:

1. That at all times hereinafter mentioned, Plaintiff, MARK FAM, was and still is a resident of the County, City and State of New York.
2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. That on April 16, 2014, a Notice of Claim was duly served on Defendant, THE CITY OF NEW YORK.
4. That the Notice of Claim was filed within ninety (90) days after the cause of action accrued and set forth the name and post office address of Plaintiff, the nature of the claim, the time, place, and manner in which the claim arose and the items of damage and injuries sustained.
5. That at least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to Defendant, THE CITY OF NEW YORK, for adjustment or payment thereof, and it has neglected and/or refused to make adjustment or payment thereof.
6. That a hearing pursuant to §50-h of the General Municipal Law was conducted on June 17, 2014 at the request of Defendant, THE CITY OF NEW YORK.

7. That this action was commenced within one (1) year and ninety (90) days after the cause of action alleged herein accrued.
8. That this action arises under the New York State and United States Constitutions, particularly under the provisions of Article I Sections 11 and 12 of the New York State Constitution and the Fourth, Sixth and Fourteenth Amendments to the Constitution of the United States and under Federal Law, particularly 42 U.S.C. 1981, 1983, 1985 and 28 U.S.C. 1343.
9. That each and all of the acts of the Defendant, THE CITY OF NEW YORK, through its agents, servants and police officers of the New York City Police Department in its employ whose names are unknown to Plaintiff, alleged herein were under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of New York, and under the authority of their office as policemen for such City and County.
10. That the actions taken by the Defendant, THE CITY OF NEW YORK, through its agents, servants and police officers of the New York City Police Department in its employ whose names are unknown to Plaintiff, as set forth in the following paragraphs, did violate and deprive the Plaintiff of his Federal and State Constitutional rights, and such actions were taken by said police officers pursuant to official municipal policy as implemented by the New York City Police Department and Defendant, CITY OF NEW YORK.
11. That the actions taken by the Defendant as set forth in the following paragraphs, were taken by officers of the New York City Police Department in accord with the policies, customs and practices followed by members of the New York City Police Department as mandated by Defendant, CITY OF NEW YORK, which implemented said policies, customs and practices through its training and supervision of its police force.
12. That the limitations on liability set forth in CPLR Section 1601 do not apply to this action by

reason of one or more of the exemptions set forth in CPLR Section 1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF PLAINTIFF MARK FAM: MALICIOUS PROSECUTION**

13. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "12" inclusive, hereinabove as if same were more fully set forth at length herein.

14. That on February 3, 2014, upon motion of the New York County District Attorney's Office, all charges (N.Y. Penal Law § 140.10 and 140.15) against Mark Fam, relating to an arrest on April 22, 2013, were dismissed.

15. That on April 22, 2013, two police officers of the New York City Police Department, whose identities are unknown to Plaintiff, accosted, detained, and questioned without probable cause of any lawful basis, Plaintiff, Mark Fam, inside of a building, whose address is 430 West 26th Street, New York, New York 10001, located between Ninth and Tenth Avenues and Twenty-Fifth Street and Twenty-Sixth Drive in the County and State of New York (Hereinafter referred to as: "the building").

16. That Plaintiff, Mark Fam, had lawfully entered and was present in the building as an invited guest of a resident.

17. That on April 22, 2013, police officers charged Plaintiff, Mark Fam, with a violating New York Penal Law Sections 140.10 and 140.15 and issued Mark Fam Desk Appearance Ticket, Serial Number 804-00185.

18. That on April 22, 2013, police officers lacked probable cause or any lawful basis to charge him with violation the aforementioned sections of New York Penal Law, 140.10 and 140.15, or to issue him the aforementioned Desk Appearance Ticket.

19. That the actions of the aforementioned New York City Police Officers, in the employ of the Defendant, in affecting and maliciously charging the Plaintiff, Mark Fam, with serious charges has

resulted in him being maliciously prosecuted.

20. That on April 22, 2013, THE CITY OF NEW YORK maliciously initiated a prosecution against Mark Fam for the crime of violating New York Penal Law § 140.10.

21. That on April 22, 2013, THE CITY OF NEW YORK maliciously initiated a prosecution against Mark Fam for the crime of violating New York Penal Law § 140.15.

22. That at all times, the Defendant, THE CITY OF NEW YORK, lacked probable cause to believe that Mark Fam was guilty of unlawfully entering and/or remaining inside a building or real property that was used as a public housing project at the time of his arrest on April 22, 2013.

23. That Defendant lacked probable cause to believe that Mark Fam was guilty of knowingly remaining in the building.

24. That the lobby area of the building where police officers arrested Mark Fam did not fall within the legal definition of “dwelling” for purposes of a prosecution for violation of New York Penal Law § 140.15.

25. That Defendant maliciously prosecuted Plaintiff, Mark Fam, without probable cause or any lawful basis.

26. That THE CITY OF NEW YORK initiated prosecutions against Mark Fam for a purpose other than bringing an offender to justice.

27. That as a result of the foregoing unlawful and malicious prosecution, which was not supported by reasonable cause, Plaintiff suffered the following serious, ongoing, and permanent injuries, including but not limited to: loss of liberty; damage to his reputation, business, and psychological health; embarrassment; and humiliation.

28. That the amount of damages sought by Plaintiff against the Defendant exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF MARK
FAM: VIOLATION OF UNITED STATES CONSTITUTIONAL RIGHTS**

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "28" inclusive, hereinabove as if same were more fully set forth at length herein.

30. That the conduct of the Defendant, THE CITY OF NEW YORK, through its agents, servants and police officers of the New York City Police Department in its employ whose names are unknown to Plaintiff, deprived the Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

- a. The right of the Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States;
- b. The right of the Plaintiff to be informed of the nature and cause of the accusation against him, secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and
- c. The right of the Plaintiff not to be deprived of life, liberty or property without due process of law and the right to the equal protection of the law secured by the Fourteenth Amendment to the Constitution of the United States.

31. That as a result of the foregoing unlawful violations of his Constitutional rights under the Constitution of the United States, Plaintiff suffered the following serious, ongoing, and permanent injuries, including but not limited to: loss of liberty; damage to his reputation, business, and psychological health; embarrassment; and humiliation.

32. That as a result of these actions, the Plaintiff suffered violations of his Constitutional rights under the Constitution of the United States, all of which have resulted in damages which exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF MARK
FAM: VIOLATION OF NEW YORK STATE CONSTITUTIONAL RIGHTS**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "32" inclusive, hereinabove as if same were more fully set forth at length herein.

34. That the conduct of the Defendant, THE CITY OF NEW YORK, through its agents, servants and police officers of the New York City Police Department in its employ whose names are unknown to Plaintiff, deprived the Plaintiff of the following rights, privileges and immunities secured to him by Article I, §§ 11 and 12 of the New York State Constitution:

- a. The right of the Plaintiff that he shall not be denied the equal protection of the laws of this state or any subdivision thereof; and
- b. The right of the Plaintiff to be secure in his person, houses, papers and effects, against unreasonable searches and seizures, shall not be violated, and no warrants shall issue, but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

35. That as a result of the foregoing unlawful violations of his Constitutional rights under the Constitution of the State of New York, Plaintiff suffered the following serious, ongoing, and permanent injuries, including but not limited to: loss of liberty; damage to his reputation, business, and psychological health; embarrassment; and humiliation.

36. That as a result of these actions, the Plaintiff suffered violations of his Constitutional rights under the Constitution of the State of New York, all of which have resulted in damages which exceed the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, MARK FAM, demands judgment against Defendant, THE CITY OF NEW YORK, on the first cause of action in an amount which exceeds the jurisdictional limits of all lower Courts, on the second cause of action in an amount which exceeds the

jurisdictional limits of all lower Courts, and on the third cause of action in an amount which exceeds the jurisdictional limits of all lower Courts, together with interests and the costs and disbursements of these actions.

Dated: New York, New York
November 25, 2014

Yours, etc.,

LAW OFFICE OF RICHARD M. KENNY

By: _____

CLIFFORD R. TUCKER

Attorneys for Plaintiff

Office and P.O. Address

875 Avenue of the Americas, Suite 805

New York, New York 10001

(212) 421-0300

VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss.:

CLIFFORD R. TUCKER, an attorney duly admitted to practice in the State of New York affirms the following under penalties of perjury:

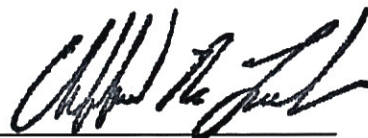
I am associated with the LAW OFFICE OF RICHARD M. KENNY, attorneys for the Plaintiff in the above entitled action.

I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof and, upon information and belief, affirmant believes the matters alleged therein to be true.

The reason this Verification is made by the affirmant and not by the Plaintiffs is that the Plaintiffs do not reside in the county wherein the attorney for the Plaintiffs has his offices.

The source of affirmant's information and the grounds of his belief are communications, papers, reports and investigations contained in the file.

Dated: New York, New York
November 25, 2014



CLIFFORD R. TUCKER

SUPREME COURT OF THE STATE OF NEW YORK:

COUNTY OF NEW YORK

MARK FAM,

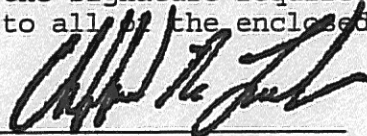
Claimant,

-against-

THE CITY OF NEW YORK,

Respondent.

The signature below shall constitute the signature required pursuant to
NYCRR Section 130-1.1-a and pertains to all of the enclosed documents:
SUMMONS AND COMPLAINT


CLIFFORD R. TUCKER

LAW OFFICE OF RICHARD M. KENNY
Attorney for Plaintiff
875 Avenue of the Americas - Suite 805
New York, New York 10001
(212) 421-0300
(212) 421-1774 (FAX)